



SPONSOR: Rep. Heffernan & Rep. Griffith & Rep. Romer &
Rep. Ross Levin & Sen. Lockman
Reps. Minor-Brown, Berry, Gorman, Lambert, Neal,
Snyder-Hall; Sens. Hansen, Pinkney, Cruce

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 272

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO CRIMES AGAINST PUBLIC ORDER.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Part A, Subchapter VII, Chapter 5, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1310. Interference with reproductive health services or exercise of religion.

(a) It is unlawful to do any of the following:

(1) By force or threat of force or by physical obstruction, intentionally injure, intimidate, or interfere with another person because that person is or was obtaining or providing reproductive health services.

(2) By force or threat of force or by physical obstruction, intentionally injure, intimidate, or interfere with another person in order to discourage any person from obtaining or providing reproductive health services.

(3) By force or threat of force or by physical obstruction, intentionally injure, intimidate, or interfere with another person lawfully exercising or seeking to exercise the right of religious freedom at a place of worship.

(4) Intentionally damage or destroy the property of a facility because such facility provides reproductive health services, or intentionally damage or destroy the property of a place of worship.

(b) (1) Except as provided in paragraphs (b)(2) through (b)(4) of this section, a violation of subsection (a) of this section is a class A misdemeanor.

(2) In the case of a second or subsequent offense after a prior conviction under this section, a violation of this section is a class G felony.

(3) If a violation of this section results in bodily injury, then it is a class D felony.

(4) If a violation of this section results in death, then it is a class B felony.

(c) Civil remedies.

(1) Right of action.

a. A person aggrieved by reason of the conduct prohibited by subsection (a) of this section may commence a civil action for the relief set forth in paragraph (c)(1)b. of this section, except that such an action may

23 be brought for a violation of paragraph (a)(1) or (a)(2) of this section only by a person involved in providing or
24 seeking to provide, or obtaining or seeking to obtain, services in a facility that provides reproductive health
25 services, and such an action may be brought for a violation of paragraph (a)(3) or (a)(4) of this section only by a
26 person lawfully exercising or seeking to exercise the First Amendment right of religious freedom at a place of
27 religious worship or by the entity that owns or operates such place of worship.

28 b. Relief. In any action under paragraph (c)(1)a. of this section, a court may award appropriate relief,
29 including temporary, preliminary, or permanent injunctive relief and compensatory and punitive damages, as well
30 as the costs of suit and reasonable fees for attorneys and expert witnesses. With respect to compensatory damages,
31 the plaintiff may elect, at any time prior to the rendering of final judgment, to recover, in lieu of actual damages,
32 an award of statutory damages in the amount of \$5,000 per violation.

33 (2) Action by Attorney General.

34 a. If the Attorney General has reasonable cause to believe that any person or group of persons is being,
35 has been, or may be injured by conduct constituting a violation of this section, the Attorney General may
36 commence a civil action in an appropriate court.

37 b. Relief. In an action under paragraph (c)(2)a. of this section, the court may award appropriate relief,
38 including temporary, preliminary, or permanent injunctive relief, compensatory damages, and a civil penalty
39 against each respondent as follows:

40 1. For a first offense, not more than \$10,000 for a nonviolent physical obstruction and not more than
41 \$15,000 for any other violation.

42 2. For a second or subsequent offense, not more than \$15,000 for a nonviolent physical obstruction
43 and not more than \$25,000 for any other violation.

44 (d) A parent or legal guardian of a minor is not subject to criminal penalties or civil remedies under this section for
45 activities described in subsection (a) of this section insofar as the parent or legal guardian's activity is directed exclusively
46 at that minor.

47 (e) As used in this section:

48 (1) "Facility" includes a hospital, clinic, physician's office, or other location that provides reproductive health
49 services, and includes the building or structure in which the facility is located.

50 (2) "Interfere with" means to restrict a person's freedom of movement.

51 (3) "Intimidate" means to place a person in reasonable apprehension of bodily harm to that person or to
52 another person.

53 (4) "Physical obstruction" means rendering passage to or from a facility or place of worship unreasonably
54 difficult or hazardous.
55 (5) "Reproductive health services" means as defined in § 1702 of Title 24.
56 (f) The Superior Court has original jurisdiction over all criminal proceedings arising under this section.

SYNOPSIS

This Act creates the new crime of "interference with reproductive health services or exercise of religion." It is based on a substantially similar federal law (18 U.S.C. § 248).

The Superior Court is vested with jurisdiction over criminal proceedings arising under this law.